

Tentative Rulings and Resolution Review Hearings
July 13, 2026
Department 64

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

*****IMPORTANT: PLEASE NOTE THAT THE COURT NO LONGER USES COURTCALL. REMOTE APPEARANCES MAY NOW BE MADE THROUGH WEBEX.*****

Remote appearances through WebEx are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

To appear through WebEx, please follow these instructions:

Call 1-(844) 517-1271 at least 10 minutes before your hearing start time.

The access code is 2480 682 3750. There is no attendee ID number, so just follow verbal instructions for prompt.

Once you have gained access, wait for the court to start the calendar. Please follow these instructions once a calendar is called:

1. Please mute your telephone until your case is called.
2. Please do not place the call on hold.
3. Minimize all background noise during your call.
4. Please identify yourself, each time, prior to speaking with the court.
5. Disconnect when the court has completed your case or cases.
6. The court prohibits the recording of these proceedings.

8:30 a.m. Law and Motion

ANGELL-MURRAY, ET AL. VS. C&K RESIDENTIAL HOMES LLC, ET AL.

CASE NUMBER: 24CV-0204149

Tentative Ruling on Motion to Enforce Settlement Agreement: Defendants C&K Residential Homes, LLC and Chaylene Victorine move for an order enforcing the Settlement Agreement and Release entered into by the parties and directing the Court to enter judgment of dismissal with prejudice as to all causes of action. The motion was properly noticed and is unopposed.

Merits: CCP § 664.6(a) provides that if parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. Here, the parties stipulated in a writing signed by the parties to settle this case for \$21,000. Plaintiff agreed to file a dismissal of this action with prejudice, with all sides to bear their own attorney fees and costs, within five days of receipt of the settlement funds.

The Court finds that the Settlement Agreement is valid and enforceable. The Settlement Agreement provides for enforcement under CCP § 664.6. Defendant has performed under the Agreement by paying \$21,000. Plaintiff has failed to perform (despite an unsuccessful attempt to do so) by failing to timely dismiss the matter with prejudice. The matter remains pending before this court has not been dismissed. Plaintiff has failed to attend several status review hearings and has not responded to an Order to Show Cause.

The Motion is **GRANTED**. The entire action of all parties and all causes of action is **DISMISSED** with prejudice. The clerk is directed to vacate all future dates and close the file.

ANGELL-MURRAY, ET AL. VS. C&K RESIDENTIAL HOMES LLC, ET AL.

CASE NUMBER: 24CV-0204149

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions (“OSC”) issued on June 24, 2026, to Plaintiffs, for failure to timely seek default and failure to timely prosecute. No response to the OSC has been filed. However, the Court notes that due to a clerical error, this OSC was issued on erroneous grounds. This matter has settled and the Court intended to issue an OSC re Dismissal. The OSC re Sanctions is **DISCHARGED**. Sanctions will not be imposed.

CAVALRY SPV I, LLC VS. THOMAS

CASE NUMBER: 25CVG-00610

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued to Plaintiff and counsel, on December 17, 2025 for failure to timely serve pleadings on Defendant pursuant to CRC 3.110(b). The Complaint was filed on March 20, 2025. “The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint.” CRC 3.110(b). It has now been over a year and there is no Proof of Service of Summons on file. Plaintiff has been provided with two continuances on the present OSC to accomplish service. At the most recent hearing, Plaintiff was ordered to file a status statement if no proof of service was on file. No status statement has been filed. Plaintiff remains in violation of CRC 3.110(b). Sanctions are imposed in the amount of \$250 against Plaintiff and Counsel. The clerk is directed to prepare a separate order of sanctions. The Court will issue a new Order to Show Cause Re: Monetary Sanctions in the amount of \$500 to Plaintiff and Counsel for their failure to timely serve the Defendant. The hearing on the new Order to Show Cause is set for **Monday, October 12, 2026, at 8:30 a.m. in Department 64.** The clerk is directed to prepare a new Order to Show Cause.

EYE VS. FAIRWAY OAKS MOBILE HOME PARK, ET AL.

CASE NUMBER: 25CV-0208669

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions (“OSC”) issued on June 1, 2026 to Plaintiff Denise Eye, in pro per, for failure to timely serve all defendants as required by California Rules of Court, Rule 3.110(b). The Court notes that